

Sugriv Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 January 2021 · Writ-C No. 25584 of 2020 · WRIT - C No. 25584 of 2020 · **Writ dismissed; billing dispute relegated to clause 6.5.**

HEADNOTE

A writ challenging the correctness of an electricity bill is dismissed where the consumer has an uncontroverted statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, before the competent authority.

FACTUAL SUMMARY

Sugriv Singh invoked the Allahabad High Court's writ jurisdiction to challenge the correctness of an electricity bill dated 20 January 2019, alleging a dispute as to the amount paid towards electricity charges. The respondents included the State of Uttar Pradesh and the power corporation. Counsel for the corporation submitted that a statutory remedy lay before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not controvert that submission.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute; alternative remedy

HOLDING

A writ petition challenging the correctness of an electricity bill, where the dispute concerns the amount paid towards electricity charges, is dismissed on the ground of alternative remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, once it is uncontroverted that a representation to the competent authority under that clause is available. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ was dismissed solely because an uncontroverted clause 6.5 representation to the competent authority was available for the disputed bill. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The challenge was to the correctness of a 20 January 2019 electricity bill and a dispute as to amounts paid; the court treated clause 6.5 as the statutory forum and did not examine the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 20.01.2019 AND THE DISPUTE AS TO AMOUNTS PAID TOWARDS ELECTRICITY CHARGES

Left unexamined on merits; the writ was dismissed only for alternative remedy under clause 6.5. ¶ 1